

PART A – DEFINITIONS

*NOTE TO **CREDORE** USERS: Both the User Terms and Conditions in Part B and the eBL Terms and Conditions in Part C will require definitions for defined terms. All the definitions below are needed for the **Credore** User Agreement Terms. The definitions of Delivery Order, eBL, **Credore** eBL, and **Credore** eBL Platform (shown in italics) are also required for the **Credore** eBL Terms.*

1. Definitions

1.1 MLETR Compliant Jurisdiction: A MLETR compliant jurisdiction refers to a country or legal system that has formally adopted, or has brought its domestic laws into alignment with, the UNCITRAL Model Law on Electronic Transferable Records (MLETR), thereby recognizing the legal validity and enforceability of electronic transferable records equivalent to their paper-based counterparts.

1.2 Carrier: A User who is the carrier as described in the bill of lading or its authorised representative.

1.3 Consignee: A User who is the consignee as described in the bill of lading and recipient of the shipped goods.

1.4 Delivery Order: A document given by the Carrier in exchange for a bill of lading containing an undertaking by the Carrier to the person identified in the document, to deliver the goods to which the document relates, to that person.

1.5 eBL: An electronic bill of lading.

1.6 Harmful Components: Technologically harmful programs, phishing, data or code including, but not limited to, viruses, trojan horses, worms, time-bombs, keystroke loggers, spyware, or adware.

1.7 IG: The International Group of P&I Clubs.

1.8 Credore eBL Terms: The Terms at Appendix 1, Part C, together with relevant Definitions in Part A of the Guidance Notes as published by **Credore** on the **Credore** website.

1.9 Credore User Agreement Terms: The Terms at Appendix 1, Part B, together with the Definitions in Part A of the Guidance Notes as published by **Credore** on the **Credore** website.

1.10 Originating User: The Carrier who issues and signs the **Credore** eBL.

1.11 Previous Credore eBL Platform: The **Credore** eBL Platform or other TradeTrust-enabled systems, if any, used prior to the **Credore** eBL Platform to issue, sign, or transfer possession of the same **Credore** eBL.

1.12 Previous User: A User of a Previous **Credore** eBL Platform or this Platform who was previously the holder of the same **Credore** eBL, regardless of which TradeTrust-enabled system was used.

1.13 Service Provider: **Credore**, being the provider of the **Credore** eBL Platform pursuant to this agreement.

1.14 Shipper: A User who is the shipper of the goods as described in the bill of lading.

1.15 Subsequent Credore eBL Platform: The **Credore** eBL Platform or other TradeTrust-enabled systems, if any, used after the **Credore** eBL Platform to transfer possession of the same **Credore** eBL.

1.16 **Subsequent User:** A User of a Subsequent **Credore** eBL Platform or this Platform who becomes the holder of the same **Credore** eBL, regardless of which TradeTrust-enabled system is used.

1.17 **Credore Adopter:** Any system provider who has integrated and uses the TradeTrust framework software and operates a TradeTrust-enabled eBL system, such as the **Credore** eBL Platform.

1.18 **Credore eBL:** The electronic bill of lading (subject to and compliant with the laws of the jurisdiction of Singapore, which recognises its validity as equivalent to paper bills) and permitted to be issued, signed, and transferred within the **Credore** eBL Platform, Subsequent **Credore** eBL Platforms, or Previous **Credore** eBL Platforms, and which incorporates the **Credore** eBL Terms or such equivalent terms as may be approved by the IG.

1.19 **Credore eBL Platform:** An eBL system, built using TradeTrust framework software, which is interoperable with other TradeTrust-enabled eBL systems and incorporates the **Credore** User Agreement Terms and requires all eBLs used on the platform to incorporate the **Credore** eBL Terms or such equivalent terms as may be approved by the IG.

1.20 **TradeTrust Software:** Free and framework software developed and/or amended from time to time and made available by the IMDA to **Credore** and other adopters through the TradeTrust website.

1.21 **User:** Any individual, company, or entity that accesses and uses the **Credore** eBL Platform, as the case may be.

1.22 **User Agreement:** An agreement between the Service Provider **Credore** and the User of the **Credore** eBL Platform.

1.23 **Credore eBL Platform or this Platform:** The TradeTrust-enabled eBL system operated under these Terms and Conditions by the Service Provider **Credore**.

PART B – USER AGREEMENT TERMS AND CONDITIONS

1. Preamble/Background Recitals

(A) The Service Provider **Credore** has developed platforms and systems integrating TradeTrust framework software for the **Credore** eBL Platform, which it makes available for use via the internet by itself or by group companies or to third-party subscribers on a subscription and pay-per-use basis for the purpose of, amongst other things, issuing, signing, and transferring possession of **Credore** eBLs and/or interoperating with other TradeTrust-enabled eBL systems.

(B) The User wishes to use, and the Service Provider **Credore** wishes to provide, services for the use of **Credore** eBLs subject to the Terms and Conditions of this agreement.

2. eBL Clauses

Notwithstanding details provided by the Shipper to the Carrier for issuing the **Credore** eBL, the Carrier may "clause" the eBL with remarks as to the leading marks, number, quantity, weight, and/or apparent good order and condition of the goods ("Clauing"). Such Clauing may only take place before issuance of the eBL to the Shipper. The Service Provider **Credore** accepts no responsibility for any such remarks which the Carrier may choose to make.

3. Rejection of the eBL

Without prejudice to the Previous Users' legal rights and obligations, any User being the lawful holder of the **Credore** eBL may reject the transfer of the eBL, thereby transferring possession of the eBL back to the Previous User who last had possession of the eBL.

4. Switch to Paper

At any time prior to the delivery of the goods covered by the **Credore** eBL, the Originating User undertakes, at the request of any Subsequent User, who is then the holder of the **Credore** eBL, to accept the return by way of transfer of possession of the **Credore** eBL and issue a paper bill of lading in its place. Upon acceptance of the return of the **Credore** eBL, the **Credore** eBL shall be made inoperative and ceases to have any effect or validity, and no further transfer of possession of the **Credore** eBL shall be permitted. The paper bill of lading shall accurately reflect the wording of the **Credore** eBL together with the terms and conditions contained in and/or incorporated by reference in the **Credore** eBL. The change of medium in accordance with this paragraph shall not affect the rights and obligations of the parties. The paper bill of lading shall state the date of issue in accordance with the **Credore** eBL, the date of conversion to paper, and the paper bill of lading shall be accompanied by a printout of the electronic record of holders between the date of issue and the date of conversion to paper.

The paper bill of lading will contain the following statement:

"This is a paper bill of lading issued and signed by the Carrier in compliance with a request from the lawful holder of the Credore eBL on [date] to switch to paper. Pursuant to the governing law of the jurisdiction of the Singapore, being an MLETR-compliant jurisdiction, the change of medium shall not affect the rights and obligations of the parties. The Credore eBL has been made inoperative and has ceased to have any effect or validity, and no further endorsement or transfer of possession of the Credore eBL shall be permitted."

5. Surrender, Delivery, and Accomplishment

5.1. Before a User who is the holder of the **Credore** eBL is entitled to physical delivery of cargo, the User must surrender the **Credore** eBL by transferring possession to the Carrier upon which (subject to any legal exception or impediment to this obligation) the Carrier is obliged to physically deliver the cargo [*or provide a Delivery Order*] to that User. The Carrier shall be entitled to require reasonable proof of identity from the party taking delivery of the goods. The Service Provider **Credore** does not warrant the accuracy of such identity information and accepts no liability in respect thereof whatsoever in this regard.

5.2. Upon acceptance of the surrender of the **Credore** eBL and after delivery of the cargo [*or provision of a Delivery Order*] to the User in clause 5.1, the **Credore** eBL shall be made inoperative and ceases to have any effect or validity in transferring title to the cargo, and no further transfer of possession of the eBL shall be permitted. The Carrier shall then record the status of the eBL as accomplished.

6. Liability of Service Provider for Errors, Malfunction, and Corrections

6.1. The Service Provider **Credore** has no liability whatsoever to any User for [*any loss, damage, or delay of whatsoever nature whether direct or indirect, physical or financial due to a cause or combination of causes, any of which is beyond the reasonable control of the Service Provider*].

6.2. The Service Provider **Credore** does not represent or warrant that its **Credore** eBL Platform will be [*error-free, free of Harmful Components, or that defects will be corrected or that the defects will always be accessible to be corrected. However, should any errors or defects occur, or any Harmful Components be discovered, the Service Provider shall be entitled to a reasonable amount of system downtime in order to use all reasonable efforts to*

correct such errors or defects and/or remove such Harmful Components].

6.3. The Service Provider Credore does not warrant or represent that [the information available on or through its Credore eBL Platform will be correct, accurate, timely, or otherwise reliable].

6.4. Notwithstanding clauses 6.2 and 6.3 above and subject to clauses 6.1 above and 6.5 below, the Service Provider **Credore** accepts liability, up to, but not exceeding, the limit of liability in clause 7 below, in the event that the User suffers loss, damage, or delay solely and directly caused by failure of the **Credore** eBL Platform, subject to such losses not being reasonably avoidable and/or mitigatable by the User. It is agreed that such reasonable avoidance and mitigation shall include the User requesting or agreeing to the Carrier switching the **Credore** eBL to paper pursuant to clause 4.

6.5. Notwithstanding any provision in this agreement, the Service Provider **Credore** does not accept any liability whatsoever to any User who is not either a Carrier, Shipper, Consignee, and/or lawful holder of the **Credore** eBL.

7. Limit of Liability

7.1. The Service Provider **Credore** will not be liable under contract, tort, or otherwise to any User for more than [amount to be decided by the Service Provider] (inclusive of interest and costs) [per event/per customer/in any one calendar year as decided by the Service Provider].

7.2. The Service Provider **Credore** shall procure and maintain at all times adequate liability insurance for liability for failure of the **Credore** eBL Platform arising from system fault or failure.

8. Interoperability

The **Credore** eBL Platform is designed for and will interoperate with other TradeTrust-enabled eBL systems in so far as the TradeTrust framework software allows.

9. Dispute Resolution

9.1. Any dispute arising out of or in connection with these Terms and Conditions, including any question regarding the User Agreement's existence, validity, or termination, shall be referred to and finally resolved by arbitration administered by an arbitration institution in the Singapore jurisdiction in accordance with its arbitration rules current at the commencement of the arbitration, which rules are deemed to be incorporated by reference in this clause.

9.2. The seat of arbitration shall be the jurisdiction of Singapore.

9.3. The Tribunal shall consist of three arbitrators.

9.4. The language of the arbitration shall be English.

9.5. The law governing this arbitration agreement shall be the law of the jurisdiction of the Singapore.

10. Governing Law

These Terms and Conditions shall be governed by and construed in accordance with the laws of Singapore.

PART C – CREDORE EBL PROVISIONS

*NOTE TO **Credore** USERS: These Terms shall be incorporated into each **Credore** eBL issued through the **Credore** eBL Platform. For originating systems which govern and operate the Carrier's issuing of the eBL, the NOTICE should be in a prominent position on the first page of the bill of lading. Also, care should be taken to ensure that if adapting standard form eBL clauses (for example, where the eBL is on liner terms) or standard terms and incorporated charterparty terms (for example, where the Carrier is issuing a bill of lading with the contract of carriage mainly contained in a voyage or time charterparty and then incorporated by reference to the charterparty in the bill of lading) that the **Credore** eBL Terms are consistent with these clauses. This is particularly the case with dispute resolution provisions, which may be different in standard form charterparties or bills of lading on liner terms to the provisions recommended below. In the event of a conflict, these clauses should prevail.*

Notice

1. This is a **Credore** eBL governed by the law of the jurisdiction of the Singapore, which has adopted or aligned with the **UNCITRAL Model Law on Electronic Transferable Records ("MLETR")**. This **Credore** eBL meets the requirements of the MLETR as implemented under the law of the jurisdiction of the Singapore, which gives legal recognition to it as equivalent to a paper bill of lading.

Carrier's Right to Receive Back

2. This **Credore** eBL has been issued, signed by the Carrier using the **Credore** eBL Platform. The Carrier has the right to receive this **Credore** eBL back on the same **Credore** eBL Platform from which it issued, signed the eBL when the **Credore** eBL is surrendered in return for discharge of the cargo as further set out below.

Switch to Paper

3. At any time prior to the delivery of the goods covered by the **Credore** eBL, the Carrier undertakes, at the request of any lawful holder of the **Credore** eBL, to accept the return by way of transfer of possession of the **Credore** eBL and issue a paper bill of lading in its place. Upon acceptance of the return of the **Credore** eBL, the **Credore** eBL shall be made inoperative and ceases to have any effect or validity, and no further transfer of possession of the **Credore** eBL shall be permitted. The paper bill of lading shall accurately reflect the wording of the **Credore** eBL together with the terms and conditions contained in and/or incorporated by reference in the **Credore** eBL. The change of medium in accordance with this paragraph shall not affect the rights and obligations of the parties. The paper bill of lading shall state the date of issue in accordance with the **Credore** eBL, the date of conversion to paper, and the paper bill of lading shall be accompanied by a printout of the electronic record of holders between the date of issue and the date of conversion to paper.

The paper bill of lading will contain the following statement:

"This is a paper bill of lading issued and signed by the Carrier in compliance with a request from the lawful holder of the **Credore** eBL on [date] to switch to paper. Pursuant to the governing law of the jurisdiction of the Singapore, being an MLETR-compliant jurisdiction, the change of medium shall not affect the rights and obligations of the parties. The **Credore** eBL has been made inoperative and has ceased to have any effect or validity, and no further endorsement or transfer of possession of the eBL shall be permitted."

Surrender, Delivery, and Accomplishment

4. Upon acceptance of the surrender of the **Credore** eBL, the Carrier shall be entitled to require reasonable proof of identity from the party taking delivery of the goods [or receiving the Delivery Order] and thereafter (subject to any legal exception or impediment to its obligation) to deliver the cargo to the party entitled to take delivery. Upon making delivery of the goods in this clause 4, the eBL shall be made inoperative and ceases to have any effect or validity in transferring title, and no further transfer of possession of the eBL shall be permitted. The Carrier shall

then record the status of the eBL as accomplished.

Dispute Resolution

5. Any dispute arising out of or in connection with these Terms and Conditions, including any question regarding the **Credore** eBL's existence, validity, or termination, shall be referred to and finally resolved by arbitration administered by an arbitration institution in the Singapore jurisdiction in accordance with its arbitration rules current at the commencement of the arbitration, which rules are deemed to be incorporated by reference in this clause.

- i. The seat of arbitration shall be the jurisdiction of Singapore.
- ii. The Tribunal shall consist of three arbitrators.
- iii. The language of the arbitration shall be English.
- iv. The law governing this arbitration agreement shall be Singapore.

Governing Law

6. These Terms and Conditions shall be governed by and construed in accordance with the laws of the jurisdiction of Singapore.